

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION, NASHIK
CIVIL SUIT NO. 45 OF 2024

RAMESH BABURAO PATIL, Age: 52 years, Occupation: Farmer, R/o: Gat No. 45, Village Ozar, Nashik District, Maharashtra – 422206

... PLAINTIFF

VERSUS

SURESH GOVIND PATIL, Age: 48 years, Occupation: Businessman, R/o: Plot No. 12, Cidco Colony, Nashik – 422009

... DEFENDANT

**PLAINT FOR RECOVERY OF POSSESSION, DECLARATION OF TITLE AND
PERMANENT INJUNCTION**

1. FACTS OF THE CASE

The Plaintiff is the lawful owner and possessor of agricultural land bearing Survey No. 145/2A admeasuring 5 Acres (Five Acres), situated at Village Ozar, Taluka Niphad, District Nashik, State of Maharashtra. The Plaintiff purchased the said land from one Govind Ramchandra Patil (father of the Defendant) vide Registered Sale Deed dated 15th June 2001, duly registered before the Sub-Registrar, Niphad, bearing Registration No. MH-NK-2001-4521, Book No. 1, Volume No. 234, Page Nos. 112-128. The Plaintiff paid full and valuable consideration of Rs. 3,50,000/- (Rupees Three Lakhs Fifty Thousand only) at the time of execution of the said Sale Deed.

2. PLAINTIFF'S CONTINUOUS POSSESSION

Ever since the execution and registration of the aforesaid Sale Deed in the year 2001, the Plaintiff has been in open, continuous, peaceful, and uninterrupted possession and enjoyment of the suit land. The Plaintiff has been cultivating the land as his primary agricultural holding, growing sugarcane and grapes which are primary cash crops of Nashik region. The Plaintiff has been paying all land revenue, water charges, and other statutory dues in respect of the suit land regularly. The 7/12 Extract (Record of Rights) issued by the Revenue Department stands in the name of the Plaintiff as the lawful owner and possessor of the said land.

3. DEFENDANT'S ILLEGAL OCCUPATION

In or around March 2022, when the Plaintiff was admitted to hospital for treatment of a serious illness and was unable to personally oversee his agricultural land, the Defendant — Suresh Govind Patil, being the son of the original vendor and bearing a long-standing grudge against the Plaintiff — took advantage of the Plaintiff's absence and illegally trespassed upon and occupied the suit land. The Defendant has, without any right, title, or interest whatsoever, taken possession of the entire 5 acres of agricultural land and has been attempting to cultivate the same and is claiming false ownership thereof.

4. LEGAL TITLE AND OWNERSHIP

The Plaintiff's title to the suit property is absolute, clear, and marketable. The chain of title documents clearly establishes: (a) Original Sale Deed dated 15.06.2001 in favour of Plaintiff; (b) Mutation Entry No. 2345 in Revenue Records; (c) 7/12 Extract clearly showing Plaintiff as owner; (d) Payment receipts of land revenue from 2001 to 2024; (e) Agricultural produce records showing Plaintiff's cultivation. The present market value of the suit property is approximately Rs. 85,00,000/- (Rupees Eighty-Five Lakhs Only) based on the prevailing market rates in Nashik District.

5. DEFENDANT'S CLAIM OF ADVERSE POSSESSION (BASELESS)

The Defendant has falsely and frivolously claimed adverse possession of the suit land under Section 27 of the Limitation Act, 1963. This claim is entirely baseless and without merit for the following reasons: (i) The Defendant's occupation commenced only in March 2022, which is merely 2 years ago — far short of the 12 years required for adverse possession; (ii) The Plaintiff never abandoned possession voluntarily; (iii) The Plaintiff's possession was merely disrupted due to medical emergency; (iv) Adverse possession requires open, hostile, exclusive possession which has never been established.

6. CAUSE OF ACTION

The cause of action in this suit arose in March 2022 when the Defendant illegally occupied the suit land. The cause of action further arose on 10th December 2023 when the Defendant refused to vacate the property despite receipt of a legal notice dated 25th November 2023 sent by the Plaintiff through his advocate Adv. Suresh Kulkarni, Nashik.

7. WITNESSES

The Plaintiff proposes to examine the following witnesses: (a) Govind Tukaram Patil, brother of the Plaintiff, who will testify about continuous possession since 2001; (b) Ramesh Deshpande, Sarpanch of Village Ozar, who will testify about the Plaintiff's cultivation and possession; (c) Revenue Inspector, Taluka Niphad, who will produce and verify the official revenue records; (d) Agricultural Officer who will confirm crop records.

8. RELIEFS CLAIMED

In view of the foregoing, the Plaintiff humbly prays that this Hon'ble Court be pleased to: (a) Pass a decree for recovery of possession of the suit land bearing Survey No. 145/2A admeasuring 5 Acres situated at Village Ozar, Nashik from the Defendant; (b) Pass a decree declaring that the Plaintiff is the absolute owner of the suit land; (c) Pass a decree for permanent injunction restraining the Defendant, his servants, agents, and all persons claiming through him from interfering with the Plaintiff's peaceful possession and enjoyment of the suit land; (d) Award mesne profits at the rate of Rs. 2,00,000/- per annum from March 2022 till delivery of possession; (e) Award costs of this suit to the Plaintiff; (f) Pass such other and further orders as this Hon'ble Court may deem fit and proper.

VERIFICATION

I, Ramesh Baburao Patil, the Plaintiff above named, do hereby verify that the contents of paragraphs 1 to 8 of this Plaint are true and correct to the best of my knowledge, belief, and

information. No part of it is false and nothing material has been concealed therefrom.

Date: 15th January 2024

Place: Nashik

Signature of Plaintiff
(RAMESH BABURAO PATIL)